

SENATE BILL NO. 440

INTRODUCED BY T. MANZELLA

A BILL FOR AN ACT ENTITLED: "AN ACT REQUIRING PUBLIC REPORTS OF STATEWIDE CANVASSED  
ELECTION RESULTS PROVIDED UNDER TITLE 13, CHAPTER 15, PART 5; PROVIDING THE  
INFORMATION TO BE INCLUDED IN THE REPORT; AND ESTABLISHING REPORTING REQUIREMENTS;  
~~AND PROVIDING RULEMAKING AUTHORITY.~~"

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Report of STATEWIDE CANVASSED election results --rulemaking. (1) For  
an election SUBJECT TO A STATEWIDE CANVASS AS PROVIDED IN PART 5 OF THIS CHAPTER, after the vote count  
procedures provided in 13-15-101 are completed and before the canvass required in 13-15-401 begins, the  
SECRETARY OF STATE SHALL DESIGN A RECONCILIATION SPREADSHEET FOR THE county election administrator shall  
~~prepare a~~ ADMINISTRATORS, WHO SHALL THEN USE THE spreadsheet with TO PROVIDE the following information:

- (a) the total number of registered electors in the county;
- (b) the total number of ballots issued by type, including poll, absentee, provisional, and military-  
overseas;
- (c) the total number of votes cast by type, including poll, absentee, provisional, and military-  
overseas;
- (d) the total number of ballots accepted by type, including poll, absentee, provisional, and military-  
overseas;
- (e) the total number of ballots rejected by type, including poll, absentee, provisional, and military-  
overseas;
- (f) the total number of test ballots printed, ~~counted, and accepted; and~~ USED FOR TESTING, AND  
COUNTED;
- (g) THE TOTAL NUMBER OF ELECTORS WHO REGISTERED ON ELECTION DAY; AND
- (H) precinct-level information including:

- 1 (i) the total number of registered voters in the precinct; AND
- 2 (ii) the total number of ballots counted in the precinct by type, including poll, absentee, provisional,
- 3 and military-overseas; and
- 4 ~~(iii) the total number of test ballots printed, counted, and accepted.~~
- 5 (2) The spreadsheet must be posted to the county election website in a place accessible by all
- 6 members of the public NO LATER THAN WHEN THE BOARD OF COUNTY CANVASSERS MEETS AS PROVIDED IN 13-15-
- 7 401.
- 8 (3) A digital copy of the spreadsheet must be retained in perpetuity. A physical copy of the
- 9 spreadsheet must be retained with all other records for that election in accordance with the retention schedule
- 10 provided in 13-1-303.
- 11 (4) ~~(a) The spreadsheet data must be submitted~~ COUNTY ELECTION ADMINISTRATOR SHALL SUBMIT
- 12 THE SPREADSHEET to the secretary of state ~~prior to the certification of the election~~ NO LATER THAN WHEN THE
- 13 BOARD OF COUNTY CANVASSERS MEETS AS PROVIDED IN 13-15-401.
- 14 (b) The secretary of state shall use the data submitted by the counties to prepare a comprehensive
- 15 reconciliation report ~~prior to the certification of the election~~ AT LEAST 7 DAYS PRIOR TO THE CERTIFICATION OF THE
- 16 ELECTION RESULTS BY THE BOARD OF STATE CANVASSERS.
- 17 (c) If, in the process of preparing the comprehensive reconciliation report, the secretary of state
- 18 discovers discrepancies within a county's results, the secretary of state shall immediately ~~refer the matter to~~
- 19 ~~legislative leadership~~ ADDRESS IT WITH THE COUNTY ELECTION ADMINISTRATOR, THE COUNTY GOVERNING BODY, AND
- 20 LEGISLATIVE LEADERSHIP FOR THE PURPOSE OF CORRECTING ERRORS AND RECONCILING DISCREPANCIES BY WHATEVER
- 21 ACTION IS DEEMED APPROPRIATE.
- 22 ~~(d) If notified of discrepancies in a county's results, legislative leadership may convene the~~
- 23 ~~legislative audit committee to investigate the matter.~~
- 24 (5) As soon as the report required in subsection (4) is available, the secretary of state shall:
- 25 (a) submit the report to the legislative services division, in accordance with 5-11-210, for
- 26 distribution to all members of the legislature;
- 27 (b) post the report to the statewide election website in a place accessible by all members of the
- 28 public; and

1 (c) present the report to the state administration and veterans' affairs interim committee at the first  
2 meeting after a statewide or federal primary or general election.

3 ~~(6) — The secretary of state may adopt rules to implement the provisions of this section.~~

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5 NEW SECTION. **Section 2. Codification instruction.** [Section 1] is intended to be codified as an  
6 integral part of Title 13, chapter 15, part 1, and the provisions of Title 13, chapter 15, part 1, apply to [section 1].

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